



CHAPTER 38.

An Act to restrain legal proceedings under the Truck Acts, 1831 to 1896, in respect of certain transactions heretofore effected which might lawfully have been effected in another form, and to remove doubts as to whether persons employed under contracts rendered illegal by those Acts are or were to be regarded for purposes other than those of the said Acts as employed under contracts of service.

[10th July 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where before the commencement of this Act the whole or any part of the consideration for the hiring of a worker or for the performance of any labour by a worker was the supply or a contract for the supply of any thing or the demise of any premises in respect of which a stoppage or deduction from the wages of the worker might lawfully have been made under section twenty-three of the Truck Act, 1831, if an agreement therefor had been made in writing and signed by him, no action or other legal proceeding for wages earned before the date of the commencement of this Act in respect of anything done in consideration of any such thing supplied or premises demised before that date, shall be instituted

Restraint on proceedings under 1 & 2 Will. 4. c. 37, and removal of doubts as to effect of illegality of contracts.

under section four of the said Act, and no proceedings for a penalty in respect of the making of the contract for that hiring or the performance of that labour, or in respect of any payment made before the commencement of this Act in purported execution of such a contract shall be instituted under section nine of the said Act; and any such action or other legal proceeding as aforesaid, whether civil or criminal, instituted before the commencement of this Act shall be discharged and made void, subject to such order as to costs as the court or a judge thereof may think fit to make.

(2) For the removal of doubt it is hereby declared that in determining for any purpose other than the purposes of the Truck Acts, 1831 to 1896, whether a person is or was before the commencement of this Act employed under a contract of service, the person shall not be deemed not to be or not to have been so employed by reason only of the contract being or having been illegal, null, or void under the said Acts.

(3) In this Act the expression "worker" has the meaning assigned to the expression "workman" by section ten of the Employers and Workmen Act, 1875.

38 & 39 Vict.
c. 90.

Provision
as to
Northern
Ireland.
10 & 11
Geo. 5. c. 67.

2. For the avoidance of doubt it is hereby declared that the Parliament of Northern Ireland shall, notwithstanding anything in the Government of Ireland Act, 1920, have power to make laws for purposes similar to the purposes of this Act.

Short title,
citation and
extent.

3.—(1) This Act may be cited as the Truck Act, 1940, and this Act and the Truck Acts, 1831 to 1896, may be cited together as the Truck Acts, 1831 to 1940.

(2) Save as provided in the last foregoing section, this Act shall not extend to Northern Ireland.

Printed by EYRE AND SPOTTISWOODE LIMITED

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Acts of Parliament

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